

**STATEMENT BY KAREN FRIEDMAN AGNIFILO  
OUTSIDE 100 CENTRE STREET**

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Luigi thanks everybody for being here today. My name is Karen Friedman Agnifilo and I'm here with Jacob Kaplan and the rest of Luigi Mangione's legal team. My intention is not to give a press conference, not to give remarks and not to speak outside of court because I think the most important thing is to speak in court on the record. But since video cameras - the application for video of today's proceeding was denied, I thought I would give the remarks that I gave in court out here so that the people who are interested in hearing what's happening to Luigi Mangione can hear what's happening to Luigi Mangione.

So I'm going to do my best to stick to the remarks that were given in court. First, I want to start by talking about the fact that Luigi Mangione remains in federal custody where he is being prosecuted in three jurisdictions: by the federal government, by New York State, and by Altoona, Pennsylvania, but he is being held in federal custody and the Department of Justice has refused to allow him to be in State custody, despite the fact that they've all agreed that the State court is going to go first. Now this is problematic for several reasons: number one, the federal government is still considering whether to execute Luigi and considering whether to seek the death penalty, so we are fighting that simultaneously while going first here in state court, and it impacts our ability to meet with him before court, after court. He is constantly surrounded by law enforcement, he is in shackles, he was wearing a vest today, some - it looked like, I don't even know what it looked like, but it was a very serious vest with his legs shackled and his arms shackled, and so he is being treated differently because he is being held in federal custody than any other person who would be facing serious Murder 1 charges in New York State court, and I made a record in court today that I don't understand what this show of danger is for.

When I go visit Luigi at MDC in Brooklyn, I sit with him, he is unshackled, he walks around freely in the visiting area, we sit in a room together without law enforcement hovering over us. But for whatever reason, here, despite all of the law enforcement, they need him to be wearing this vest, they need him to be shackled, they stand right over us and we get no time with him. So, he is being treated differently because of this

unusual and frankly - the fact that he is being prosecuted by three jurisdictions for one event. It all is about one thing. One single event. So we object to that.

We also made a record today that there - although the Manhattan DA's office has been providing discovery, we are past the discovery deadline, but they have made an effort to provide discovery, and we appreciate it. But what we haven't received is the police paperwork from New York City. We haven't received any of the - they call them DD5s, those are the follow-up police reports that detectives write. I'm sure there will be hundreds of them and we have not received those yet, very important.

We've also just today received the discovery regarding the arrest in the Altoona case and we've received a little of that previously, and we are concerned that Luigi's constitutional rights were violated in Pennsylvania and there are serious search and seizure issues that will be litigated in that case in Pennsylvania and in this case here, and in the federal case, because it is alleged that Luigi had a gun on him and had other property on him that they are going to use against him in all of the cases. If there is a search and seizure issue, and again, we have to review all of the paperwork and camera footage when we receive it before we say definitively whether we think there is one, but so far what we are seeing is we think there is a serious search and seizure issue, and so we want the opportunity to litigate it, including in Pennsylvania where he was supposed to have a court date on February 24th, but the Department of Justice is refusing to transport him and allow him to face the charges in Pennsylvania, so he cannot litigate those issues in Pennsylvania.

Which brings me to the most important point that we made today, which is Luigi's right to a fair trial is being infringed upon because he is being publicly treated as guilty and as having the presumption of guilt, as opposed to the presumption of innocence, which is what he is entitled to. And although of course I understand the NYPD's need for a press conference before an arrest, or after an arrest, which they did here. I didn't like it, but they did it, and I understood it. What I did not understand was how shocking it was that this week, on HBO in a documentary, I see the Chief of Detectives and the New York City mayor, full hair and makeup done, sitting down, and giving an interview for television, and talking about the evidence in Luigi's case, talking about police paperwork that we don't have, talking about forensics that we have not yet received. I guess we have now, today, but I didn't when I was sitting there, learning about the case, hearing an actor play Luigi, reading from a journal that they say is Luigi's and we have yet to receive it from the prosecution. And so it's outrageous that they have time to go and prejudice Mr. Mangione's ability to receive a fair trial and go out and make these statements but not give this to us. And so we are

concerned, because if the Chief of Detectives is telling everybody about all this evidence, and what if it ultimately gets suppressed because it was an illegal search and seizure in Altoona, Pennsylvania, how is he going to get a fair trial?

So those are a little bit more than I was allowed to say in court, but that's the gist of it. That's what my prepared remarks were, and hopefully we'll allow cameras in the court going forward. If not, I will continue to provide information. We put up a website that just has basic information. It's [luigimangioneinfo.com](http://luigimangioneinfo.com) and we will post a transcript of today's proceeding on that website. And that's where we are going to be providing hopefully accurate information about this case. I apologize I'm not going to take any questions and I'm not going to make any other out of court statements because this is truly intended just to be a recitation of what happened in court. But one last thing, Luigi really wanted to thank the supporters for being here and we all appreciate it very much. Thank you so much.

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